

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **not** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it is the party's responsibility to provide a court reporter.

Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found by accessing the following link:

https://www.occourts.org/system/files?file=privately_retained_court_reporter_policy.pdf

Additional information about the availability of court reporters can be found at:
<https://www.occourts.org/divisions/court-reporter-services/availability-court-reporters>

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C27 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. The Court's policies and procedures, including Guidelines for Remote Proceedings are available at <https://www.occourts.org/general-information/news-events/covid-19-response/civil-covid-19-response> and will be strictly enforced. A helpful video detailing how to check-in and appear by video can be found at <https://www.youtube.com/embed/CU090y2oaWM?rel=0&autoplay=1>.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 23, 2026

	Case Name	Tentative
101	2024-01407287 Mirrafati vs. California Receivership Group, Inc.	1. Demurrer to Amended Complaint 2. Case Management Conference The general demurrer by Defendants California Receivership Group, Inc. (“Receivership Group”) and Mark Adams (“Adams”) (collectively, “Defendants”) to the three causes of action alleged in the Second Amended Complaint (“SAC”) filed by Plaintiffs Sayed Mirrafati and Mira Properties, LLC (collectively, “Plaintiffs”) is overruled. The Court sets this matter for a 5 day jury trial on August 9, 2027 at 9:00 a.m. in Department C27. All parties are ordered to comply with OCSC Local Rule 317, this department’s procedures, and pretrial order, each of which can be found on the Orange County Superior Court website. In addition, Department C27 utilizes the Orange County Superior Court Electronic Evidence Portal for all court and jury trials. All parties are ordered to review and comply with the Orange County Superior Court Civil Unlimited - Electronic Evidence Protocol, which can also be found on the Orange County Superior Court website. A mandatory settlement conference is scheduled for July 9, 2027 at 8:30 a.m. in Department C27. All parties and counsel are ordered to be personally present. Further, all parties must comply with OCSC Local Rule 316. The clerk is ordered to give notice.
102	2025-01486130 Caruso vs. State of California	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <u>Demurrer and Motion to Strike</u> The general demurrer by Defendant State of California acting by and through the Department of Transportation (erroneously sued as Defendant State of California and California Department of Transportation) (“Defendant”) to the second and third causes of action alleged in the Second Amended Complaint (“SAC”) filed by Plaintiff Peter Caruso (“Plaintiff”) is overruled in part and sustained in part with leave to amend. Defendant’s motion to strike portions of Plaintiff’s SAC is denied in part and granted in part. Defendant’s unopposed request for the Court to take judicial notice of the complaint and right to sue notice dated April 30, 2025 is granted. (Evid. Code, § 452, subd. (c); <i>see, Abikar v. Bristol Bay Native Corp.</i> (S.D. Cal. 2018) 300 F.Supp.3d 1092, 1099.) Defendant’s unopposed request for the Court to take judicial notice of the complaint filed in a 2022 case is granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as

distinguished from the contents of documents filed therein. (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.)

Defendant's unopposed request for the Court to take judicial notice of the settlement agreement and release for the 2022 case is granted. (Evid. Code, § 452, subd. (d); *City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.)

Defendant's unopposed requests for the Court to take judicial notice of the FAC, notice of ruling, and SAC are denied because it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:53.1a.)

DEMURRER TO SAC

Second cause of action for retaliation under FEHA

Plaintiff did not allege facts with the required specificity to state this cause of action. Demurrer is sustained with 15 days leave to amend.

Third cause of action for failure to prevent discrimination and retaliation

Plaintiff alleged sufficient facts with the required particularity to state this cause of action. (SAC, ¶¶ 7-9, 26, 27, 28, 30, and 31.) Demurrer is overruled.

MOTION TO STRIKE

Defendant seeks an order striking paragraph 29 at 9:14-20, 9:20-10:2, 10:2-16, 10:16-23, 10:23-11:6, 11:6-14, 11:14-19, 11:19-25, 11:25-12:4, 12:4-11, and 12:11-19, paragraph 8 at page 4, lines 6-11, paragraph 13, and paragraph 14.

Paragraph 29 at 9:14-20, 9:20-10:2, 10:2-16, 10:16-23, 11:6-14, 11:14-19, 11:19-25, 11:25-12:4, 12:4-11, and 12:11-19

"Where evidence of workplace discrimination is proffered to cast doubt on an employer's stated justification for an adverse employment action, for example, 'me too' evidence can be admissible to show intent or motive, which could establish that the employer's stated reason was a pretext. (*Johnson v. United Cerebral Palsy/Spastic Children's Foundation (Johnson)* (2009) 173 Cal.App.4th 740, 760, 93 Cal.Rptr.3d 198.) The 'me-too' doctrine, however, does not permit a plaintiff to present evidence of discrimination against employees outside of the plaintiff's protected class to show discrimination or harassment against the plaintiff. (*Hatai v. Department of Transportation* (2013) 214 Cal.App.4th 1287, 1297-1298, 154 Cal.Rptr.3d 659, disapproved of on other grounds in *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 115, 186 Cal.Rptr.3d 826, 347 P.3d 976.) Although 'me too' evidence can be admissible to prove intent, motive, and the like with respect to the plaintiff's own protected class, it is never admissible to prove an employer's propensity to harass. (*Pantoja*, at p. 111, 129 Cal.Rptr.3d 384.)" (*Pinter-Brown v. Regents of University of California* (2020) 48 Cal.App.5th 55, 96.)

The determination of what evidence of discrimination raised by other employees is admissible in fact based and depends on many factors, including how closely related the evidence is to the plaintiff's circumstances and theory of the case. (*Id.*, at 97; *see, Johnson*

v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties (2009) 173 Cal.App.4th 740, 766–767.)

“‘Me too’ evidence is therefore not subject to any per se rule of exclusion, and may be admissible to prove a defendant’s motive or intent even where the conduct occurred outside the plaintiff’s presence and at times other than when the plaintiff was employed.” (*Meeks v. Autozone, Inc.* (2018) 24 Cal.App.5th 855, 871.) “Me too” evidence may be relevant and admissible to prove the employer’s intent, to impeach the employer’s credibility as a witness, and to rebut factual claims made by defense witnesses. (*Id.*, at 871-872; *see, Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 110.)

“Dissimilarities between the facts related in the other employees’ declarations and the facts asserted by plaintiff with regard to her own case go to the weight of the evidence, not its admissibility.” (*Johnson v. United Cerebral Palsy/Spastic Children's Foundation of Los Angeles and Ventura Counties* (2009) 173 Cal.App.4th 740, 767.)

However, the “me-too” doctrine does not entitle a plaintiff to present evidence of discrimination against employees outside of the plaintiff’s protected class to show discrimination or harassment against plaintiff. (*Hatai v. Department of Transportation* (2013) 214 Cal.App.4th 1287, 1298.)

Defendant showed the allegations on page 9, lines 14-20, page 11, lines 6-14, page 11, lines 14-19, page 11, line 25 to page 12 line 4, and page 12, lines 4-11 are irrelevant and immaterial. Plaintiff has not shown the allegations are related to any causes of action alleged in the SAC. The motion is granted without leave to amend as to these allegations.

The allegations on page 9, line 20 through page 10, line 2 do not clearly show whether the allegations are related to Plaintiff’s causes of action. Motion is granted with leave to amend as to these allegations.

Defendant did not show the allegations on page 10, lines 2-16, page 10, lines 16-23, and page 11, lines 19-25 are irrelevant or immaterial. Motion is denied as to these allegations.

The allegations on page 12, lines 11-19 appear to allege retaliatory conduct for engaging in protected activity. Because Defendant’s demurrer to the second cause of action for retaliation is sustained, the motion to strike is language is granted with leave to amend.

Paragraph 29, 10:23-11:6

Defendant did not show the allegations are irrelevant or immaterial. Accordingly, the motion is denied.

Paragraph 8 at page 4, lines 6-11

Defendant did not show this language is immaterial or irrelevant. Motion is denied.

Paragraphs 13 and 14

Plaintiff did not oppose striking these two paragraphs. Motion is granted subject to a motion for leave to amend if additional facts are discovered to support declaratory relief and/or injunctive relief.

Case Management Conference

		The case management conference is continued to March 8, 2027 at 10:00 a.m. in Department C27. Defendant is ordered to give notice.
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